

By submitting a request for a Matter Product Attestation Intermediate (PAI) certificate — in particular by signing a PAI Naming Application — you (the "Subscriber") accept the terms and conditions of this Agreement and are bound by them from the date of that submission. This Agreement is the "Subscriber Agreement" referred to in the OISTE/WISEKey Matter CP/CPS.

This Agreement is concluded between **WISEKey SA**, Avenue Louis-Casaï 58, 1216 Cointrin – Geneva, Switzerland, as operator of the Certification Authority **WISEKey OISTE Matter PAA GA** under the OISTE/WISEKey Global Trust Model ("WISEKey", "we"), and the Subscriber ("you"). SEALSQ Corp., a WISEKey Holding company, delivers the Matter PKI services described here through its INeS certificate management platform; where this Agreement says WISEKey, it includes SEALSQ Corp. acting on WISEKey's behalf.

1 Definitions. Capitalised terms have the meaning given in the OISTE/WISEKey Matter CP/CPS. In addition:

CP/CPS	The OISTE/WISEKey Matter Certificate Policy and Certification Practice Statement, current version, published at https://github.com/OISTE/repository and https://wisekey.com/repository .
CSA Matter Requirements	The Matter PKI Certificate Policy and the Matter specifications published by the Connectivity Standards Alliance (CSA), available to CSA members at https://groups.csa-iot.org/wg/members-all/document/folder/2002 . Under CP/CPS section 2.2.1 they prevail over the CP/CPS and over this Agreement in case of discrepancy.
PAA	Product Attestation Authority: the root of the Matter attestation hierarchy. WISEKey operates the PAA "WISEKey OISTE Matter PAA GA" (CP/CPS Appendix B).
PAI	Product Attestation Intermediate: the intermediate certificate issued to you by the PAA, bound to your CSA Vendor ID and optionally to a Product ID, under which Device Attestation Certificates are issued.
DAC	Device Attestation Certificate: the end-entity certificate issued under a PAI to an individual Matter device.
DCL	The Matter Distributed Compliance Ledger maintained by the CSA, in which PAA and PAI certificates and revocation information are published (CP/CPS section 2.1).
INeS	The WISEKey / SEALSQ certificate management platform through which PAI and DAC certificates are requested, issued and managed.

2 Scope. This Agreement regulates the provision of Matter certification services by WISEKey to you as Subscriber of a PAI certificate, and your use of those services, including the issuance of DACs under your PAI.

3 Object and order of precedence. The certification services are provided in accordance with the CP/CPS and with the CSA Matter Requirements. In case of discrepancy the CSA Matter Requirements prevail over the CP/CPS, and the CP/CPS prevails over this Agreement, except for the commercial terms (fees, liability caps, termination) which are governed by this Agreement.

4 WISEKey warranty. In providing its certification services WISEKey complies with the obligations of CP/CPS section 9.6.1 and with the CSA Matter Requirements. Upon your acceptance of a certificate, WISEKey warrants to you that the certificate was issued in accordance with those obligations, that the information it contains was verified as stated in CP/CPS section 3.2, and that revocation services are available as stated in CP/CPS section 4.9.

5 Certification services delegated to you. Through the INeS platform WISEKey delegates to you, as owner of a PAI, the following functions, which you perform as a Registration Authority within the meaning of CP/CPS section 1.3.2 and under the controls of CP/CPS section 5:

- the processing of requests for the issuance and revocation of DACs under your PAI;
- the verification that each device receiving a DAC carries the Vendor ID and, where applicable, the Product ID stated in your PAI, and that the device identity data placed in the DAC is accurate;
- the generation and protection of DAC key pairs where they are not generated in the device, and the secure injection of DACs and keys into devices at manufacture;
- the retention of the registration and issuance records required by CP/CPS section 5.5, in compliance with the data-protection legislation applicable to you.

Where the PAI is hosted and operated by you rather than by WISEKey, you additionally operate a technically constrained Certification Authority under CP/CPS section 5, and the controls of CP/CPS sections 5 and 6 apply to your installation. You may not further delegate these functions without WISEKey's prior written approval (CP/CPS section 5).

6 Subscriber acknowledgements. Upon accepting this Agreement you acknowledge that:

- you have read the CP/CPS and the CSA Matter Requirements applicable to PAI and DAC certificates, and understand the nature of the services, the use, security precautions and functionalities of certificates, cryptographic keys and the INeS platform;
- the warranties and the limitations on liability and damages set out in the CP/CPS and in clause 10 of this Agreement apply;
- WISEKey may, at its sole discretion, decline to process or issue a certificate (CP/CPS section 4.2.2);
- your PAI certificate is public information and is published in the DCL and in the OWGTM repository (CP/CPS section 2.1); DACs issued under it may be disclosed to relying parties;
- key escrow is not permitted for Matter certificates (CP/CPS section 4.12) and suspension of certificates is not supported (CP/CPS section 4.9.13);
- the operational period of your PAI and of the DACs beneath it may be restricted by the CSA Matter Requirements (CP/CPS section 6.3.2);
- WISEKey will revoke your PAI, and will process revocation as required by the CSA Matter Requirements (CP/CPS section 4.9.1.1), if you request it or if WISEKey obtains evidence or is made aware that:
 - the private key corresponding to the public key in the certificate has been lost, disclosed without authorisation, stolen or otherwise compromised, or a method exists that can easily compute it;
 - the original certificate request was not authorised and authorisation is not retroactively granted;
 - information in the certificate is inaccurate, has materially changed, or the certificate was not issued in accordance with the CP/CPS or the CSA Matter Requirements;
 - you have violated a material obligation under this Agreement, or a material prerequisite to issuance is not satisfied;
 - the certificate has been misused, or your right to use the Vendor ID or Product ID stated in the certificate has ceased;
 - any other circumstance reasonably expected to affect the reliability, security or integrity of the certificate or its key pair, or any other revocation reason stated in the CP/CPS or the CSA Matter Requirements, applies.

7 Your obligations and warranties. Upon applying for a certificate you agree to provide accurate and complete information; to generate, or have generated, the PAI key pair in a cryptographic module meeting CP/CPS section 6.2.1 (FIPS 140-2 Level 3 or equivalent for CA keys); and to review the issued certificate and either accept it or notify WISEKey of any required correction. Upon accepting the certificate you warrant, in line with CP/CPS section 9.6.3, that:

- all information supplied by you and contained in the certificate is true and valid, and you hold the CSA Vendor ID (and any Product ID) it contains;
- the private key is protected under your sole control, has not been compromised, and is used only to issue DACs for your own Matter products in accordance with the CP/CPS and the CSA Matter Requirements;
- you will exercise reasonable care to maintain the security of the private key and of any activation data, and prevent its unauthorised use;
- you will promptly cease using the PAI and request its revocation, by the means of CP/CPS section 4.9.3 (INeS portal or cps@wisekey.com), if you know or suspect that the private key, the module holding it, or its activation data has been compromised, lost or materially affected, or if any information in the certificate becomes inaccurate;
- you will report suspected key compromise by one of the methods of CP/CPS section 4.9.12 and cooperate with any Certificate Problem Report investigation;
- you will perform the quarterly self-assessment required of Matter Issuing CAs by CP/CPS section 8.1 and submit to the assessments of CP/CPS section 8.4, where you operate the PAI yourself;
- you will cease all use of the private key upon expiration or revocation of the certificate;
- you will pay the fees for the certification services in accordance with the applicable price list or service agreement.

8 Certificate acceptance. In accordance with CP/CPS section 4.4.1, you are deemed to have accepted the certificate when any of the following occurs: you accept this Agreement in electronic form when submitting or acknowledging the certificate request; you download or install the certificate, making it technically available for use, including its publication in the DCL; or you do not expressly refuse the certificate once the issuance notification has been sent.**9 Validity period and fees.** The validity period of your PAI is the one stated in the certificate and requested in your PAI Naming Application; a PAI may be issued without a scheduled expiration where the CSA Matter Requirements permit. The provision of the services, including the operation of your PAI on INeS and the issuance of DACs, is subject to payment of the fees in the applicable price list or service agreement (CP/CPS section 9.1). The refund policy is the one stated in the service agreement or, failing that, in WISEKey's general terms and conditions (CP/CPS section 9.1.5).

10 Liability. The disclaimers and limitations of liability of CP/CPS sections 9.7 and 9.8 apply to all claims arising in relation to certificates and certification services provided by WISEKey. If WISEKey breaches the warranty of clause 4 and you are in compliance with this Agreement, WISEKey's liability is capped, per class of certificate, at the amounts below, in Swiss Francs:

Certificate class	Maximum liability per certificate (CHF)	Total aggregate liability per certificate (CHF)
PAI certificate	10,000	500,000
DAC certificate	100	1,000

Whereas:

- **"Maximum liability per certificate"** is the maximum aggregate liability per year on a single certificate towards a single relying party.
- **"Total aggregate liability per certificate"** is the maximum aggregate liability per year on a single certificate towards all end users, relying parties and any other entities affected by that certificate.
- **"Global liability"** is the aggregate liability limit of the OWGTM towards all end users, relying parties and any other entities that are not Subordinate PKI Entities in respect of all certificates issued under the PAA, which under CP/CPS section 9.8 is CHF 5,000,000 in total and CHF 500,000 per year. WISEKey administers claims on a first-come, first-served basis. You may make only one warranty claim per transaction regardless of how many WISEKey products or services you relied on. Once the applicable cap is reached, you release WISEKey from any liability for remaining unreimbursed amounts.

These limitations apply to any liability whether based in contract, tort (including negligence) or any other theory, and to any direct, indirect, special, punitive, exemplary, consequential, reliance or incidental damages. The OISTE Foundation delegates this liability to WISEKey as lead operator, which covers it through an Errors and Omissions insurance (CP/CPS sections 9.2.1 and 9.8).

11 Data protection and privacy. WISEKey acts as data controller and you, when performing the functions of clause 5, as data processor or joint controller, as stated in CP/CPS section 9.4. You consent to the WISEKey Privacy Policy published at <https://www.wisekey.com/repository> (CP/CPS section 9.4.1) and authorise the publication of the data you have indicated for inclusion in the certificate, and of its status information, in the DCL, in the OWGTM repository and by any other means WISEKey considers necessary for the provision of certification services. You further authorise WISEKey to disclose information relevant to any judicial or administrative proceeding concerning the reliability or legal validity of a certificate or of a signature backed by it, whether the certificate is valid, expired or revoked (CP/CPS section 9.4.6). No personal data is placed in PAI or DAC certificates.

12 Intellectual property. The PAI and DAC certificates, the object identifiers and the CP/CPS are owned by the OISTE Foundation; your private and public keys are your property (CP/CPS section 9.5). Any trademark included in a certificate is under your responsibility.

13 Indemnification. You will indemnify and hold harmless WISEKey, the OISTE Foundation and their respective directors, officers, employees, agents and affiliates from any liability arising out of your use of the certificates for other than their intended use, out of DACs you issue in breach of the CP/CPS or the CSA Matter Requirements, or out of any material breach of your obligations under this Agreement.

14 Electronic contracting and notices. You agree to the formation and conclusion of contracts and to the delivery of notices and communications by electronic means, including the acceptance of this Agreement and termination notices, and confirm that you have the capability and equipment to do so. Notices to you are sent to the e-mail address in your registration information (CP/CPS section 9.11). WISEKey may amend this Agreement and the CP/CPS following CP/CPS section 9.12; amendments are published in the OWGTM repository and major changes are notified to you.

15 Term and termination. This Agreement takes effect on submission of your certificate request and remains in force while any certificate issued to you under it is valid. Either party may terminate it at any time. If you terminate without cause, no fees are refunded; if WISEKey terminates without cause, it refunds you in accordance with its refund policy; if WISEKey terminates with cause, no refund is due. On termination your PAI is revoked, and your obligations concerning the private key, confidentiality and personal data survive (CP/CPS section 9.10.3).

16 Assignment. You may not assign any right or obligation under this Agreement without WISEKey's written consent (CP/CPS section 9.16.2).

17 Severability. If any provision of this Agreement is held invalid by a court of competent jurisdiction, the remaining provisions remain in force, and the invalid provision is replaced by a valid one that most closely reflects its purpose (CP/CPS section 9.16.3).

18 Applicable law and jurisdiction. This Agreement is governed by the laws of Switzerland, and the parties submit to the exclusive jurisdiction of the courts of Geneva (CP/CPS sections 9.13 and 9.14).

ACCEPTANCE

Acceptance is given electronically on submission of the PAI Naming Application. Where a signed copy is required, complete the block below.

Subscriber (legal name)	Organisation	Signature
CSA Vendor ID	4 hexadecimal digits	
Authorised representative	Name and position	
Date	Select a date	

This Agreement is issued by

WISEKey SA — operator of the WISEKey OISTE Matter PAA GA

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